

****SEE ALSO Newsletter of September 11, 2023****

[doc. web n. 9920578]

****Provision of July 18, 2023****

****Register of Provisions****

n. 312 of July 18, 2023

****THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA****

In today's meeting, attended by
Prof. Pasquale Stanzione, President,
Prof. Ginevra Cerrina Feroni, Vice President,
Dr. Agostino Ghiglia and Attorney Guido Scorza, Members,
and Cons. Fabio Mattei, Secretary General;

****HAVING REGARD TO**** Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter "Regulation");

****HAVING REGARD TO**** Legislative Decree No. 196 of June 30, 2003, "Code regarding the protection of personal data," as amended by Legislative Decree No. 101 of August 10, 2018, containing provisions for the adaptation of the national legal system to the Regulation (hereinafter "Code");

****HAVING REGARD TO**** Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

****HAVING REGARD TO**** the documentation on file;

****HAVING REGARD TO**** the observations of the Office formulated by the Secretary General pursuant to Article 15 of Guarantor Regulation No. 1/2000 on the organization and functioning of the Office of the Guarantor for the protection of personal data, on www.gpdp.it, doc. web n. 1098801;

****REPORTING**** Dr. Agostino Ghiglia;

1. ****Premise****

With a report submitted to the Authority pursuant to Article 144 of the Code, a citizen of the Municipality of Modica (hereinafter, the "Municipality") complained that he had received several violation notices for the administrative violation of a mayoral ordinance for having incorrectly disposed of unsorted waste, as would be evident from viewing the footage recorded by video devices placed near the bins designated for waste collection. Based on the received notices, the complainant argued that the checks for the violation, through viewing the footage, occurred more than a month after the date on which the footage was recorded.

The complainant also lamented the absence of suitable information regarding the processing of personal data, as an informational sign was placed directly on the bin, which was not easily visible and lacked the indication of the data controller and the purposes pursued.

2. ****The Investigative Activity****

In response to a request for information from the Authority (prot. n. XX of XX), the Municipality, with note prot. n. XX of XX, stated, in particular, that:

"to combat the widespread phenomenon of waste abandonment and the incorrect disposal of urban solid waste, it has, through its own determinations, at different times, entrusted the companies CAT Srl of Ragusa and Ermeslink [...] with the purchase, installation, and maintenance of fixed cameras, and the collection and analysis of footage related to environmental violations, both administrative and criminal";

“following the aforementioned determinations [the Municipality] appointed the owners of the aforementioned companies as auxiliaries of the Judicial Police, for the collection, analysis, and delivery of the aforementioned footage for the periods indicated in the aforementioned determinations”; “after receiving the footage, the personnel of the Local Police, Judicial Police section, proceeded, pursuant to Article 13 of Law No. 689/81, to view [the same], drafting a specific service note, for the application of the related administrative sanctions in cases of established violation, archiving the files as evidence and for any requests for viewing and/or issuing copies by the entitled offender and subsequent appeals. [...] The remaining part of the footage, where no violations are found, [was] deleted”;

“various informational signs are scattered throughout the territory indicating that the areas are under video surveillance,” without, however, providing any documentary evidence regarding this statement.

In response to a further request for information from the Authority (prot. XX of XX), the Municipality, with note prot. n. XX of XX, represented, in particular, that:

“the installation of a video surveillance system near the waste bins in the urban and extra-urban areas was necessary to [...] monitor the disposal of waste and the illegal abandonment thereof in order to combat the degradation of the territory [...] and to prevent the emergence of dangers to hygiene and public health and/or the development of fires due to the presence of piles of abandoned waste”; the Municipality “has [defined] retention times equal to ‘seven days following the detection of the information and images collected through the use of video surveillance systems,’ subject to special needs for further retention”;

“the images can only be viewed by the Municipal Police personnel [...] The Judicial Police agents view the images delivered.”

within two days from the recordings taken and delivered by the supplier “Ermeslink,” appointed as Auxiliary of Judicial Police. Only in the event that a crime is evident on the part of the citizen, the image is retained to prepare the report and the sanction by the same Judicial Police as evidence [...] of the alleged offense”;

“the current installation company is appointed by the Municipality as External Responsible for the processing [...] [with] appointment determination no. XX”;

“citizens are informed of the presence of cameras through the placement of informational signs in the immediate vicinity of the cameras in accordance with Articles 13 and 14 of EU Regulation 679/2016”;

“on the institutional website of the Municipality, Section “Acts” — Subsection “Data Protection” an adequate information notice is published [...]. The locations where the cameras have been installed are also published.” Lastly, with note prot. no. XX of XX, the Municipality declared, in particular, that:

“the company “Cat srl” in the context of surveillance activities, has acted as an auxiliary of the judicial police, [having been] appointed by the Command of the Local Police [of] the Municipality. The company “Cat srl” had the task [...] of performing a preliminary analysis and selection of the footage in which a violation or crime was highlighted. The agreement signed is the appointment report by the Command of the Local Police”;

“the companies “Cat srl” and “Ermeslink” began to provide their services to this Municipality [...] respectively, as indicated below: - XX; - XX;

“the Municipality [...] has entered into a personal data processing agreement with the company “Ermeslink” [...] pursuant to Article 28 of Regulation (EU) No. 679/2016, with determination no. XX of XX and delivery of guidelines. Previously, an agreement had been signed with the report of the judicial auxiliary by the Local Police”;

“the retention times for the footage collected through the surveillance system in use and adopted [by] the Municipality were seven days following the detection of images, [and] only during the period from July to December 2019, which includes the period to which the reports refer, corresponding to the last assignment of the task to the company “Cat srl”, as per the determination of the Head of the IX sector of the Municipality of Modica no. XX of XX, the retention times for the images were extended to fifteen

days. This decision was made following the fact that during the period from March to November 2019, criminal acts occurred in the area referenced by the reports, [including] a serious intimidation act that took place, against the “Ecology and Environment Sector”, on the night of March 18, 2019, when the car used by officials of the Office to identify illegal dumps and sanction offenders was set on fire”; “in the areas referred to in the said reports, from March to November 2019, repeated violations of Legislative Decree no. 152/2006 and subsequent amendments occurred, characterized by uncontrolled waste dumping phenomena, including hazardous waste (asbestos), which is why [...] it was decided to extend in the last assignment given to the company “Cat srl”, which ran from June to December 2019, only in those months, the retention period of the images up to 15 days”;

“the date from which this Municipality has set the retention time of the images to “seven days following the detection of information” dates back to the first assignment to the company “Cat srl” with determination of the Head of the IX sector no. XX of XX”;

“informational signs were [placed] in the areas under surveillance, during the period from July to November 2019, including those in the areas mentioned in the said reports”;

“the [various] informational signs attached to the note of XX were placed in February 2020 [...]”;

“the complete information on the processing of personal data in the context of surveillance was published on XX on the institutional website of the Entity”;

“during the period from July to November 2019, the interested parties (citizens) were made aware of the surveillance system, installed by the Municipality of Modica to limit the proliferation of illegal dumps, through informational signs placed near the bins, on light poles, located in the immediate vicinity or on the front facade of the bins themselves [...]”;

“the Municipality of Modica appointed the Data Protection Officer DPO/RPD on XX”;

“the contact details of the Data Protection Officer (Gruppo Consulting Soc. Coop. Stp) were published on the official website of the Municipality of Modica on XX.”

With note of XX (prot. no. XX), the Office, based on the acquired elements, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, inviting the aforementioned holder to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code; as well as Article 18, paragraph 1, of Law No. 689 of 24/11/1981). With the aforementioned note, the Office noted that the Municipality has carried out personal data processing through video devices in a manner not compliant with the regulations on personal data protection, in violation of Articles 5, paragraph 1, letters a), c) and e), and paragraph 2, 12, 13, 14, 24, 25, 28 and 37 of the Regulation.

With note of XX (prot. Authority no. XX), the Municipality sent its defensive writings to the Authority regarding the notified violations, stating, in particular, that:

"[The Municipality] has decided to install cameras in strategic areas of its

territory (at the time of the events, five fixed and four mobile) for reasons of prevention and deterrence of illegal activities [in the field of environmental matters ...]

[both] administrative [and] criminal offenses punishable by arrest (such as that provided for

by Article 256 of Legislative Decree 152/2006 when the abandonment of waste occurs by holders

of businesses or entities) or [...] to prevent actual vandalism [...] through damage, theft, and/or arson of the bins that have been recorded in

the territory [...]. The aforementioned purpose can therefore be

considered legitimate to allow the retention for seven days as provided for by paragraph 8 of Article 6 of Decree Law No. 11 of 23.02.09 which, as in the present case, allows such a faculty for the purpose of “public safety”;

with regard to the “temporary extension granted to allow a retention period of 15 days [...], [which had] only an exceptional and urgent nature [...] [for] investigative needs arising from the aforementioned vandalism,” [it is deemed applicable] in the present case, [...] the provision of Article 8 of Presidential Decree 15.01.18 No. 15. If it is true, in fact, that paragraph 8 of Article 6 of Decree Law 11/09 determines the maximum retention period to seven days and it is also true that the same regulation preserves “special needs for further retention.” It does not seem, moreover, that the exceptional and temporary period of fifteen days, set for the aforementioned purposes, can be considered “excessive” or “inappropriate”;

“although the video surveillance systems have been installed in multiple locations in the city, the fixed cameras in use during the reference period were only five (of which four were operational) whose management was certainly compatible with a manual and non-scheduled deletion of the acquired recordings. To date, moreover, the entire system present in multiple locations in the city (with 12 fixed cameras and 4 mobile cameras) is currently non-operational precisely awaiting the adjustments already initiated that will allow for future compliant use”;

“[...] the informational signs [...] displayed at the locations of the verified violations were not only those affixed to the bins [...] but also those placed independently on posts adjacent to the areas concerned [, which] clearly warned before the field of view of the presence of video surveillance, [...] [also bearing] the Municipality's logo [...] and precise contact information [, although they did not state] either the temporarily granted extension or the new purposes underlying the same extension, [which had been] granted only for a temporary purpose related to an exceptional event and remained in effect for only a few days”;

“the appointment as Auxiliary of Judicial Police equates to the data processing manager”;

“the delay in the appointment [of the DPO] was largely due to the subsequent and still ongoing COVID-19 pandemic which [...] has paralyzed much of the administrative activities of Public Entities dealing, in the last year, with issues far more imminent and pressing. In any case, it is also noteworthy that determination No. XX approving the tender for the assignment of the task was adopted already on XX [...] and that two tenders resulted in

failure due to lack of requirements on the part of the participants. It follows that the delay of only a few months compared to the entry into force of the legal obligation is to be considered not due to the will of the Entity.”

3. Outcome of the investigative activity

3.1 Video surveillance in public areas

The processing of personal data through video surveillance systems by public entities is

generally permitted if it is necessary to fulfill a legal obligation to which the data controller is subject or for the execution of a task of public interest or related to the exercise of public powers conferred upon it (Article 6, paragraphs 1, letters c) and e), and 3, of the Regulation, as well as 2-ter of the Code; see paragraph 41 of the “Guidelines 3/2019 on the processing of personal data through video devices,” adopted by the European Data Protection Committee on January 29, 2020). In this context, it is noted that waste management falls within the institutional activities entrusted to local authorities.

The data controller is, in any case, required to comply with the principles regarding data protection set forth in Article 5 of the Regulation, among which the principle of “lawfulness, fairness, and transparency” (Article 5, paragraph 1, letter a), of the Regulation), under which the data controller must adopt appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14 of the Regulation in a concise, transparent, intelligible, and easily accessible form, using simple and clear language (see Article 12 of the Regulation).

Municipalities, in exercising their powers - as in the case of the verification of administrative offenses provided for by environmental legislation (see, in particular, Articles 192,

“prohibition of abandonment,” and 255, “abandonment of waste,” of Legislative Decree April 3, 2006, No. 152; Article 13, Law November 24, 1981, No. 689) or by municipal ordinances on the management and disposal of urban waste - are required, as data controllers, in accordance with the principle of accountability (Articles 5, paragraph 2, and 24 of the Regulation), to assess whether, taking into account the specific local context, the processing of personal data through video devices, for the purpose of verifying such violations, is”

****3.2 Information on the Processing of Personal Data****

When surveillance systems are employed, the data controller, in addition to providing first-level information through the placement of warning signage in proximity to the area under surveillance, must also provide the data subjects with “second-level information,” which must “contain all the mandatory elements in accordance with Article 13 of the [Regulation]” and “be easily accessible to the data subject” (“Guidelines 3/2019 on the processing of personal data through video devices,” cited, in particular, para. 7; but see also the “Provision regarding video surveillance” of the Garante dated April 8, 2010, web doc. no. 1712680, in particular para. 3.1; cf. FAQ no. 4 of the Garante regarding video surveillance, cited).

First-level information (warning sign) "should communicate the most important data, such as the purposes of the processing, the identity of the data controller, and the existence of the rights of the data subject, along with information on the most significant impacts of the processing" ("Guidelines 3/2019 on the processing of personal data through video devices," cited, para. 114). Furthermore, the signage must also contain information that may be unexpected for the data subject. This could include, for example, the transmission of data to third parties, particularly if located outside the European Union, and the retention period. If such information is not indicated, the data subject should be able to rely on the fact that there is only real-time surveillance (without any data recording or transmission to third parties) (ibidem, cited, para. 115). The first-level warning signage must also contain a clear reference to the second level of information, for example, by indicating a website where the text of the extended information can be consulted.

Moreover, first-level information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area. It is not necessary to reveal the location of the camera, as long as there are no doubts about which areas are subject to surveillance and the context of the surveillance is clearly stated (ibidem, cited, para. 113; cf. also provisions dated October 20, 2022, no. 341, web doc. no. 9831369; April 28, 2022, no. 162, web doc. no. 9777974; April 7, 2022, no. 119, web doc. no. 9773950; September 16, 2021, no. 327, web doc. no. 9705650; and March 11, 2021, no. 90, web doc. no. 9582791).

In this case, the Municipality, during the period in which the assessment reports subject to notification were issued, used an information sign (cf. annex 6 note of XX) that is not fully compliant with data protection regulations. It mentions generic "security reasons" underlying the video surveillance but does not indicate how the data subjects (i.e., not only those to whom an administrative violation is contested but all individuals who enter the range of the cameras) can receive complete second-level information on the processing, nor does it emerge from the documents that the Municipality, during that period, prepared such complete information and made it known to the data subjects, for example, by publishing it on its institutional website. In this regard, the Municipality has indeed stated that the complete information on the processing of personal data in the context of video surveillance was published on its institutional website only on XX.

For completeness, it should be noted that from the investigations carried out by the Office (cf. service report of XX), it also emerged that on the Municipality's institutional website, there was an information notice related to the "XII-ecology" sector, which stated, regarding the legal basis for the processing, that "the processing of personal data carried out through the use of video surveillance systems aims to pursue a legitimate interest of the Controller aimed at ensuring public safety and the public interest, as the processing is necessary for the execution of a task of public interest or related to the exercise of public powers vested in the data controller. [...] In this case, the processing is carried out for the protection of public hygiene and public safety"; "the [...] processing [of images] responds to the need to pursue the interest of protecting persons and property against unlawful acts (assaults, thefts, and robberies) and to collect evidence."

Thus, this information was also inadequate, as it did not refer to the purpose pursued in the specific case, which is the responsibility of the Municipality, regarding the assessment of conduct sanctioned administratively (cf. Articles 192, "prohibition of abandonment," and 255 "abandonment of waste," of Legislative Decree April 3, 2006, no. 152; Article 13, Law November 24, 1981, no. 689) and which must be distinguished from the different areas of...

"public safety" and "public security."

It should also be noted that the simplified sign used by the Municipality was affixed directly to the waste bin, even in proximity to other signs, thus generating confusion and poor visibility of the same, and therefore not allowing the interested parties to be aware of the presence of the video surveillance system before entering its field of view. In this regard, it is observed that the Municipality's assertion regarding the circumstance that "the informational signs that were displayed at the locations of the established violations were not only those applied to the waste collection bins [...] but also those placed independently on posts adjacent to the areas concerned" (note of XX) is not supported by the documentation on file, as the Municipality has not produced any evidence to support this statement.

Furthermore, it is recorded that for the period from November to July 2019, the retention time of the images was increased from seven to fifteen days, although the interested parties were not informed of this circumstance. In this regard, it was stated (see note of XX) that "the methods of retention and the purposes [...] indicated did not provide clarity either on the temporary extension granted or on the new purposes underlying the same extension."

Lastly, regarding the sign used by the Municipality starting from the month of XX (see annex 7 note of XX), the existence of an automatic data deletion mechanism is also declared, which, based on the documentation on file, does not appear to have been effectively adopted by the Municipality. Moreover, concerning the indication of the methods by which the interested parties can obtain complete information on the processing of personal data, only the possibility of physically going to an "information desk" at the Municipality's headquarters is mentioned, thereby effectively hindering their ability to easily acquire complete information on the processing of the personal data in question.

For these reasons, the processing of personal data through video devices has been carried out by the Municipality in a manner not compliant with the principle of "lawfulness, fairness, and transparency" as per Article 5, paragraph 1, letter a) and in violation of the obligations set forth in Articles 12 and 13 of the Regulation (whereas, instead, the contested violation of Article 14 should be dismissed, considering that the personal data processed through such video systems were not acquired from third parties).

3.3 The principles of data minimization, limitation of retention, accountability, and data protection by design and by default

Pursuant to Article 5, paragraph 1, letters c) and e) of the Regulation, personal data must be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed" ("data minimization") and "kept in a form which permits identification of the data subjects for no longer than is necessary for the purposes for which the personal data are processed" ("limitation of retention").

Based on the principle of accountability (Articles 5, paragraph 2, and 24 of the Regulation), it is the responsibility of the data controller to determine the retention periods for the images, taking into account the context and purposes of the processing, as well as the risk to the rights and freedoms of natural persons; unless specific legal provisions expressly provide for certain data retention periods (see FAQ no. 5 of the Authority regarding video surveillance, cited). In most cases, "taking into account the principles of Article 5, paragraph 1, letters c) and e) of the GDPR, namely data minimization and limitation of their retention, personal data should be [...] deleted after a few days, preferably through automatic mechanisms. The longer the retention period is (especially if it exceeds 72 hours), the more substantiated the analysis regarding the legitimacy of the purpose and the necessity of retention must be" (paragraph 8, point 121, of the Guidelines of the European Data Protection Board, cited; see also FAQ no. 5 of the Authority, cited).

In accordance with the principle of data protection by default (pursuant to Article 25, paragraph 2, of the Regulation), the data controller must implement appropriate technical and organizational measures to ensure that the images captured by video devices are processed, by default, only for the retention period previously defined by them.

That said, it is first observed that, from what has been stated by the Municipality, it has emerged that the video surveillance system in question was not installed solely for the purpose of preventing and detecting so-called administrative offenses by citizens, but also for the purposes of so-called urban security, that is, for reasons of prevention and deterrence of offenses (vandalism, theft, etc.).

Following some acts of vandalism, the Municipality, during the period from March to November 2019, increased the retention period of the images captured by the video surveillance system from seven to fifteen days (see note of XX), in violation of Article 6, paragraph 8, of Decree Law No. 11 of February 23, 2009, according to which "the retention of data, information, and images collected through the use of video surveillance systems is limited to seven days following detection, except for special needs for further retention."

In this regard, it should be noted that the reference to

****Part of the Municipality pursuant to Article 6, paragraph 8, of Decree-Law No. 11 of February 23, 2009, for the purpose of defining the retention periods of footage acquired through video devices, is not entirely coherent, given that, in the context in question, the Municipality was not pursuing objectives related to so-called urban security, which is governed by a specific regulatory framework (see Article 5, paragraph 2, letter a), of Decree-Law No. 14 of February 20, 2017, according to which municipalities may install surveillance systems to pursue objectives of "prevention and contrast of widespread and predatory crime," subject to the stipulation of a pact for the implementation of urban security with the territorially competent Prefecture). Moreover, the occurrence of "criminal acts [including] a serious intimidating act," consisting of the arson of a vehicle belonging to the "Ecology and Environment Sector" of the Municipality, cannot in itself give rise to a special need to extend the seven-day term provided by Decree-Law No. 11 of February 23, 2009, given that in relation to any consequences arising from conduct of the same nature, as they are immediately or promptly ascertainable, the seven-day term provided by law is certainly adequate for the purpose of ascertaining any responsibilities and acquiring the necessary images for the purposes of investigation by the competent investigative bodies.****

****Considering that the aforementioned seven-day term, defined by Decree-Law No. 11 of February 23, 2009, is not applicable in the specific context, the Municipality, in compliance with the principles of accountability, limitation of retention, and data protection by design and by default, should have defined the maximum retention period of the images collected through video devices for the purpose of ascertaining administrative violations in environmental matters, adequately justifying the choices made.****

****Moreover, from the complaint, it emerges that the administrative violations were nonetheless ascertained more than a month after the date on which the images were recorded, thus the Municipality has nonetheless retained said images beyond the aforementioned seven-day term.****

****In light of the above, the violation of the principles of "minimization," "limitation of retention" (Article 5, paragraph 1, letters c) and e)), "accountability" (Article 5, paragraph 2, of the Regulation, in conjunction with Article 24 of the Regulation), and data protection by design and by default (Article 25 of the Regulation) has been established.****

****3.4 Relationships with Data Processors****

****Pursuant to Article 28, paragraph 3, of the Regulation, "processing by a processor shall be governed by a contract or other legal act under Union law or the law of the Member States, which binds the processor to the controller, which stipulates the subject matter and duration of the processing, the nature and purpose of the processing, the type of personal data and categories of data subjects, the obligations and rights of the controller," and which provides for all the commitments required by the same Article 28, paragraph 3, of the Regulation (see Recital No. 81 of the Regulation; Provision No. 81 of March 7, 2019, web doc 9121890; Provision No. 160 of September 17, 2020, web doc 9461168; Provision No. 294 of July 22, 2021, web doc 9698724; Provision No. 351 of September 29, 2021, web doc 9716256; Provision No. 270 of July 21, 2022, web doc 9811732).****

****That said, it is noted that, following the investigation, it emerged that the Municipality entrusted the task to the company CAT S.r.l. of Ragusa (starting from XX) and, subsequently, to the individual enterprise Ermeslink of Giovanni Di Stefano (effective from XX), concerning specific operations of personal data processing, such as the collection and analysis of footage related to environmental violations, both administrative and criminal, appointing the owners of the aforementioned companies as judicial police auxiliaries for this purpose.****

****In this specific case, the company CAT Srl of Ragusa participated in the processing in question from August 8, 2017, until December 2019, without its role being defined for the purposes of data protection legislation. In relation to the company Ermeslink, however, which has been entrusted with the service in question since XX, a late act of appointment as data processor pursuant to Article 28 of the**

Regulation intervened (determination No. XX of XX). **

**Nor does it matter that the aforementioned companies were assigned functions of "judicial police," considering that the acts adopted for this purpose by the Municipality cannot be considered "agreements" on data protection entered into between the controller and the processor, lacking the elements that are unconditionally required by Article 28 of the Regulation. **

**In light of the preceding considerations, it is noted that the aforementioned companies participated in the processing of the data in question without their role being correctly defined by the Municipality prior to the commencement of processing through the stipulation of a data protection agreement, resulting in a violation by the Municipality of Article 28 of the Regulation. **

****3.5 Designation of the DPO and Publication of Contact Data****

**Pursuant to Article 37, paragraphs 1 and 7, of the Regulation, "the controller and the processor shall systematically designate a data protection officer whenever: a) the processing is carried out by a public authority... **

for the violation of the provisions of the Regulation, and the Garante shall determine the amount of the administrative fine based on the criteria set forth in Article 83, paragraph 1, of the Regulation, taking into account the nature, gravity, and duration of the infringement, as well as any mitigating or aggravating factors.

6. Final Provisions

The Garante shall notify the decision to the parties involved and publish it on its official website, in accordance with Article 166, paragraph 7, of the Code. The parties have the right to appeal this decision in accordance with the applicable legal provisions.

7. Effective Date

This ordinance shall take effect on the date of its publication on the Garante's official website.

8. Appeal

The parties may appeal this decision within 30 days from the date of notification, in accordance with the provisions of Article 166, paragraph 3, of the Code.

9. Contact Information

For any further information or clarification regarding this decision, the parties may contact the Garante at the following address: [insert contact details].

This document is issued in compliance with the applicable laws and regulations governing data protection and privacy.

from Article 83, paragraph 5, of the Regulation.

The aforementioned administrative monetary sanction imposed, depending on the circumstances of each individual case, must be determined in amount, taking into due account the elements provided for in Article 83, paragraph 2, of the Regulation.

For the purposes of applying the sanction, it has been considered that the processing of personal data in question was carried out in a public place, over a long period (from August 2017 to May 2021) and involved a large number of data subjects.

On the other hand, the non-willful nature of the violation and the cooperation with the Authority by the Municipality during the investigation are taken into account. Furthermore, there are no relevant previous violations committed or previous measures pursuant to Article 58 of the Regulation.

In light of the aforementioned elements, assessed as a whole, it is deemed necessary to determine, pursuant to Article 83, paragraphs 2 and 3, of the Regulation, the amount of the monetary sanction, as provided for in Article 83, paragraph 5, letter a) of the Regulation, in the amount of €45,000 for the violation of Articles 5, paragraph 1, letters a), c) and e), and paragraph 2 (in conjunction with Article 24), 12, paragraph 1, 13, 25, 28 and 37, paragraphs 1 and 7, of the Regulation, as an administrative monetary sanction deemed effective, proportionate, and dissuasive pursuant to Article 83, paragraph 1, of the same Regulation.

Considering that the use of the video devices in question involved public places, resulting in a

processing of personal data that "allows [to detect] the presence and behavior of individuals in the considered space" ("Guidelines 3/2019 on the processing of personal data through video devices", paragraph 2.1, cited), without the subjects filmed being fully informed of the personal data processing carried out, it is deemed that the accessory sanction of publication on the website of the Authority of this provision, as provided for in Article 166, paragraph 7, of the Code and Article 16 of the Authority's Regulation No. 1/2019, should be applied.

Finally, it is considered that the conditions set out in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

pursuant to Article 57, paragraph 1, letters a) and f) of the Regulation, notes the unlawfulness of the processing carried out by the Municipality of Modica, for the violation of Articles 5, paragraph 1, letters a), c) and e), and paragraph 2 (in conjunction with Article 24), 12, paragraph 1, 13, 25, 28 and 37, paragraphs 1 and 7, of the Regulation, as detailed in the reasoning.

ORDERS

the Municipality of Modica, represented by the legal representative pro tempore, with registered office at Piazza Principe Di Napoli, 17 - 97015 Modica (RG) – Tax Code 00175500883 – to pay the sum of €45,000 as an administrative monetary sanction for the violations of Articles 5, paragraph 1, letters a), c) and e), and paragraph 2 (in conjunction with Article 24), 12, paragraph 1, 13, 25, 28 and 37, paragraphs 1 and 7, of the Regulation, it is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

COMMANDS

the Municipality of Modica to pay the sum of €45,000 – in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, according to the methods indicated in the attachment, within thirty days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

the publication of this provision on the website of the Authority, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019;

the annotation of this provision in the internal register of the Authority, as provided for in Article 57, paragraph 1, letter u), of the Regulation, of the violations and measures adopted in accordance with Article 58, paragraph 2, of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150/2011, against this provision it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, July 18, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei